

Edwards be examined. The Court disliked that one being defendant or plaintiff, [should be] of counsel with himself in his own cause, where he is plaintiff or defendant with others, or sues or is sued in others' names. The defendant at the hearing had no counsel, and made no defence.

No party,
plaintiff, or
defendant,
[to be]
counsellor

Another cause of hearing. Rilie, plaintiff, Shellden, defendant, for riot and contempt after the command of the Queen on petition was delivered to her by the plaintiff's [Rilie's] wife, a clamorous and impudent woman, who, after two verdicts and decrees in the Exchequer and several petitions to the Queen, sued here and proved nothing against the plaintiff,¹ who was acquitted of the riot and contempt. The plaintiff [Rilie] was fined £20 for the better government of his wife, and [it was ordered] that she should be whipped and confess her fault, if the precedent of the Court would warrant this, since she is not a party to the bill. And it was moved by the Lord Keeper that no woman should be a suitor in any Court in her own person. And he and the Lord Treasurer to their great comfort have heard the King affirm that he would study to do justice to all, and there should be no prejudice [to anyone] by any private information and petition, if he be not guilty of the matter, for [the King] wishes to protect the innocent of every degree.

RILIE
v.
SHELLEDEN

Riot and
contempt

A clamorous
woman
rejected, and
ordered to
be whipped
if there be
any prece-
dent for this

No woman
to be a
suitor in
person

Moved, but
not ordered

The King
studies to do
justice to
all, and is
the protector
of the
innocent

In Camera Stellata, coram Consilio ibidem, Mercurij, 18 Maij, 1603, Jacobi Regis 1^o.²

1603
May 18

The Lord Keeper sermonized that 'it is his Ma^{tie}'s pleasure to make knowne in this Cowrte that Consyderinge yt Can not be but that in gouernemente of states there will be abuses, & suche there are now founde to be as will not staye to be prouyded for by publique acte, & therefore his Ma^{tie}'s Cheifeste studye & Care beinge to prouyde for these & to execute Justice to all, hathe & intendethe by his

[p. 122]
The King's
charge,
delivered by
the Lord
Keeper
Abuses in
govern-
ments
should have
speedy
remedy
Study and
care of the
King to
purge abuses
and to do
justice

¹ Shellden, the plaintiff in the Exchequer, but the defendant here.

² Twelve Councillors and Judges were present.

1603

May 18

All shoulde
take notice
of proclama-
tions and
observe
them

Contemners
or neglecters
of the per-
formance of
the procla-
mations,
severely
punished

'Vulgare'
shall not be
judges, but
shall go to
the judge

Officers
negligent in
punishment
shall make
account

Contemners
are pests
and con-
temners of
the royal
majesty

proclamacions to redresse them, & therefore streightlye Charge the all men to take notice of them & strictlye to obserue & perfourme them, & his Ma^{tie} will seuerely punishe all Contemners or neglecters of the perfourmance of them, therefore let this be a premonition or caution to all men to take knowledge of his Ma^{tie}'s pleasure herein; & Farther yf anye offende herein, his Ma^{tie}'s pleasure & expresse Charge ys that the vulgar shall not leape into his throne & reforme any contempte herein, but shall Complaine to the maiestrate & he shall prouyde for yt, and his Ma^{tie} will exacte a verye exacte accounte at his handes for neglecte of his Ma^{tie}'s pleasure herein: & whosoener shall Contemne his Ma^{tie}'s pleasure herein, his Ma^{tie} will accounte them as pestes & Contemners of his Ma^{tie}'s roiall dignitye.'

severa levitas:

Culpabilis neglectus damnabilis contemptus.

Dignitas personae auget culpam.

ATT-GEN.

v.
CAREWE

Recusancy
Copy of the
confession
shall not be
delivered,
nor shall the
delinquent
have counsel
[p. 124]

Koke, King's Attorney, informed *ore tenus* against Henry Carewe, esquire, a dangerous recusant, upon examination and confession: at the time of his confession, he requested a copy of it, but by order of this Court, he could not have it, nor counsel.

'The sayd Carewe, the nexte day after her Ma^{tie} was deade, comes to the parishe church where he dwelles, & telles the parishioners that the publike seruice vsed in her Ma^{ties} dayes was but onelye deuysed by her Ma^{tie} & in force duringe her time, & Contrarye to the rule & vse of the whole worlde, & Contrarye to that w^{ch} his Ma^{tie} allowethe in his booke, & therevpon delyuers them this in wrytinge, & willes them to locke the Church doore & giue him the keyes, vntill suche time as his Ma^{tie} shall Come & determine & appointe the same, & wyshes that all people woulde so doe: & after he had Confessed this in Cowrte, he delyuers in motyues & a kinde of submission, & a noate declaringe that by the lawes of this Realme no man ys to be Condemned but vpon bille & aunswere or originall proces serued vpon him.

'Shutts
church
dores' and
keeps the
keys

'The Cowrte generallye Conceyues this to be a verye heynous offence (1), againste god & his seruyce: for the booke of common prayer that ys now vsed in o^r Church, & hathe bene 45 yeares paste, his Ma^{tie} hathe hearde & bene presente at & allowed & lyked of the same; & is all the worde of god yt selfe, or warranted & grounded vpon the same, & selected & chosen oute of there popishe praier as the gowld, & leauinge to them the drosse & poyson as superfluous superstitions or incerteine.

Book of
Common
Prayer
warranted
as the word
of God by
Parliament

'(2). againste the dignitie of o^r late soueraigne Queene, in praise of whome all spake exceedinge muche as in deede none Coule speake inoughe: For Carewe pretended her religion temporarie & politike & by her alone establyshed, whereas all the worlde dothe knowe, that in regarde of her religion onelye god did fighte for her, & blesse her wth peace, plentie & prosperitie; & the booke of Common Prayer was establyshed by the whole state of the kingdome in parliament, & last of all assented vnto & Confirmed by her Ma^{tie}: & the secretarye & Lo. Keper did affyrme that his Ma^{tie} had sayde that anye scandalle or infamous defamacion or suggestion againste o^r late soueraigne Queene he woulde haue as seuerely punished, & shoulde be as odious vnto him as anye offence againste his owne person.

[p. 126]
Commenda-
tion of Queen
Elizabeth

The King
will punish
defamers of
Queen
Elizabeth

'(3). againste the Kinge's Ma^{tie} & his booke (w^{ch} Mr Secretarie called the mirror of vertue),¹ whose hathe allowed & Confirmed o^r booke of Common prayer, & no woorde againste it in his booke: for, as the Lo. Keper sayd, albeit there be a Chaunge of the gouernor, yet there ys no Chaunge neither of gouernemente nor in gouernemente.

The King's
book called
the mirror
of vertue

The
gouernor
changes,
not the
government

'(4). againste the state in regarde of the time beinge seditious & stirringe the people: for in all actions the time, place & person are the most necessarye Circumstaunces to be Consydered. For the kinge's ma^{tie}, in his lawfull, iuste & lineall title to the Crowne of Englaunde, comes not by succession onelye, or by election, but from god onelye, (so that there is no *interregnum*, as the igno-

Time, place
and person,
most con-
siderable in
all actions.

[p. 126]

No *inter-
regnum*
when it is by
descent

¹ It seems doubtful which book is here referred to, *Basilikon Doron*, published 1599, or *The True Law of Free Monarchies*, published 1598.

1603
May 18
Justices of
the Peace
are deter-
mined, con-
stables and
coroners
continue
Queen Eliza-
beth devised
the crown to
King James,
by parol

raunte dothe suppose, vntill the ceremonie of coronation), by reason of his lineall discente; yet Justices of peace are determyned, but Constables & Coroners, & suche pettie officers, remaine still: & the verye instaunte that the breathe was oute of her Ma^{tie}'s bodye, Kinge James was lawfull & rightfull kinge: & the Secretarye sayde that her late Ma^{tie} in her laste sicknes did deuyse yt vnto him by parolle.¹

Qui pietate seditiosus est leuiter pius est vita anteacta.

Recusants
are simple or
dangerous

'For recusants, the Lo. Keper sayd, some are simple & lede by error; those he pittyed & was not forwarde to punishe: others daungerous, wilfull & seditious, as Carewe is one of them.

Our religion
as ancient as
Jesus
Christ

'For o^r religion, it began wth *Consumatum est*, and is as auncient as Jesus Christe.'

In hoc leges seruiunt Christo quod leges fiant pro Christo.

Judgment
*secundum
delictum*

Relation to
the King of
causes and
motives to
mercy
[p. 127]

The King
commits
justice but
keeps mercy
Eyes of flesh,
and eyes of
judgment
This Court
hath warrant,

'The secretarye sayde that there iudgemente must be accordinge to the offence, not weyghinge his estate, *saluo contenmento suo*; but it is parte of there honor to relate to his Ma^{tie} the cause & occurrences to moue him to mercye: & the Lo. Keper he sayde that the Kinge Committes to them his iustice, but keepes to himselfe his mercye: & that he lookes vpon no man wth the eies of mallice or of fleshe, but wth the eies of his Judgemente: And that this Cowrte hath aunciente warraunte & authoritie bothe by Common

Justice
ordinary or
extra-
ordinary
Council of
State war-
ranted by
statute

Fine 1,000*l.*,
imprison-
ment during
pleasure,
recognition
of his fault
in church and

of common and statute law, to proceed on confession *ore tenus* & statute lawe to proceede in this kinde, 10 E. 2 [?] and 12 R. 2. For the kinge's Justice is ordinarie or extra-ordinarie: & to proceede at the discretion of his Ma^{tie}'s Counselle of state is extraordinarye, & warranted by statutes.

The Court
differs as to
the fine: the
greater
number is
the sentence

'The greater opinion of the Cowrte was to be fined 1000^{li}, imprisonmente during the king's pleasure, recognition of his faulte in the church & at the Assises: & to be bounde to his good behauyoure: but Sr John Fortescue, Justice Gawdy, *L'archeuesque et Lord Keper*, fine 3000^{li},' but this did not alter the sentence of the Court.

¹ See *post*, p. 177, and Appendix XI.

In Camera Stellata, coram Consilio ibidem, 1603
Veneris, 20 Maij, 1603, Jacobi Regis 1^o, adonque presente,
L. Keper, Lo. Tresorer, l'archeuesque, ambideux presidents,¹
ambideux Chief Justices, et S^r John Fortescue. May 2

Bayneham² and Sir Thomas Lucas for writing to jurors to appear, maintenance, and procuring this. It was delivered as law, that no man may write for any man to appear in any case where he himself is not interested. It was well proved that he wrote to jurors to appear, but the charge in the bill was that he procured them to give their verdict corruptly; and so, notwithstanding the offence was well proved, yet because he was not well charged in the bill, he was not sentenced: so [he was] condemned *in foro scientiae* but acquitted *in foro iudicii*, for default of a good charge in the bill.

BAYNKHAM
v.
SIR THOMAS
LUCAS
—
Writing to
jurors to
appear,
when one is
not a party
to the
matter, is
illegal
[p. 128]
Defendant
acquitted
for default of
good charge
in the bill

In Camera Stellata, coram Consilio ibidem, 1603
Veneris, 27 Maij, 1603, Jacobi Regis 1^o, adonque presente,
Lo. Keper, l'archeuesque de Canterberie, Lo. Tresorer,
Count Shrewseberie, Lo. H. Hawarde,³ Lo. Zouche, S^r W^m
Knowlles, Baron de Graies,⁴ ambideux Chief Justices, et S^r
John Fortescue. May 27

Two causes of hearing between Moyles and Ewer, cross bills for several riots; where one commands his servant to enter on [certain] land and to take distress peaceably, and he enters with many others riotously, the master is a rioter. In the first cause, where Ewer was defendant, he was fined £200, and damages, the others his servants, 40 marks and 20 marks, and imprisonment.

MOYLES
v.
EWER
—
Riots
The com-
mander is
the rioter
Fine 200l.,
imprison-
ment as of
course

In the second cause, where Ewer was plaintiff for

EWER
v.
MOYLES
—
Forgery

¹ See note, p. 160.

² Probably Sir Edmund Baynham, captain of the club of profligates known as the 'Damned Crue.' One of his exploits is recorded in this book, *ante*, p. 114. He was afterwards implicated in the Gunpowder Plot. See *Manningham's Diary*, Camden Soc. p. 142.

³ Probably Lord Henry Howard, second son of Henry Howard, Earl of Surrey (beheaded, 1547); he was afterwards created Baron Howard of Marnhill, and Earl of Northampton.

⁴ Sir William Knowles was created Baron Knowles of Greys, co. Oxford, May 18, 1603.